



Education (Work Experience) Act 1973

1973 CHAPTER 23

An Act to enable education authorities to arrange for children under school-leaving age to have work experience, as part of their education.

[23rd May 1973]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Subject to subsection (2) below, the enactments relating Work to the prohibition or regulation of the employment of children shall not apply to the employment of a child in his last year of compulsory schooling where the employment is in pursuance of arrangements made or approved by the local education authority or, in Scotland, the education authority with a view to providing him with work experience as part of his education.

(2) Subsection (1) above shall not be taken to permit the employment of any person in any way contrary to—

- (a) an enactment which in terms applies to persons of less than, or not over, a specified age expressed as a number of years; or
- (b) section 1(2) of the Employment of Women, Young Persons and Children Act 1920 or (when it comes into force) section 51(1) of the Merchant Shipping Act 1970 (prohibition of employment of children in ships);

(3) No arrangements shall be made under subsection (1) above for a child to be employed in any way which would be contrary

to an enactment prohibiting or regulating the employment of young persons if he were a young person (within the meaning of that enactment) and not a child; and where a child is employed in pursuance of arrangements so made, then so much of any enactment as regulates the employment of young persons (whether by excluding them from any description of work, or prescribing the conditions under which they may be permitted to do it, or otherwise howsoever) and would apply in relation to him if he were of an age to be treated as a young person for the purposes of that enactment shall apply in relation to him, in and in respect of the employment arranged for him, in all respects as if he were of an age to be so treated.

(4) In this Act—

“enactment” includes any byelaw, regulation or other provision having effect under an enactment;

other expressions which are also used in the Education Acts shall have the same meaning in this section as in those Acts; and

“the Education Acts” means in England and Wales the Education Acts 1944 to 1973 and, in Scotland, the Education (Scotland) Acts 1939 to 1971;

and for the purposes of subsection (1) above a child is in his last year of compulsory schooling at any time during the period of twelve months before he attains the upper limit of compulsory school age or, in Scotland, school age.

Citation and
extent.

2.—(1) This Act may be cited as the Education (Work Experience) Act 1973; and—

(a) in relation to England and Wales, this Act shall be included among the Acts which may be cited together as the Education Acts 1944 to 1973; and

(b) in relation to Scotland the Education Acts and this Act may be cited together as the Education (Scotland) Acts 1939 to 1973.

(2) Nothing in this Act extends to Northern Ireland.